



July 8, 2025

Assembly Member Buffy Wicks, Chair
Assembly Appropriations Committee
Capitol Office, 1021 O Street, Suite 8140
Sacramento, CA 95814

Assembly Member Kate Sanchez, Vice Chair
Assembly Appropriations Committee
Capitol Office, 1021 O Street, Suite 4340
Sacramento, CA 95814

Senator Josh Becker
Capitol Office, 1021 O Street, Suite 6520
Sacramento, CA 95814

RE: Ad Trade Letter in Opposition to Proposed Amendments to California SB 361 Regarding Unique Identifiers

Dear Chair Wicks, Vice Chair Sanchez, and Senator Becker:

On behalf of the advertising industry, we respectfully oppose proposed amendments to SB 361, and we offer this letter to express our concerns about this legislation.¹ We and the companies we represent, many of whom do substantial business in California, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and industry policies. However, proposed amendments to SB 361 would require data brokers to disclose the unique identifiers they use to associate personal information with a consumer through the state data broker registry. The proposed amendments related to unique identifiers are ambiguous and, if incorporated into the bill, would have little to no meaning or value to consumers. The Senate Appropriations Committee (“Committee”) should thus decline to adopt the proposed amendments to SB 361.

The proposed amendments would require “data brokers” to disclose “the unique identifiers that the data broker uses to associate personal information with a consumer” in the *publicly available* California Data Broker Registry. The Committee should decline to adopt this amendment. The proposed term is ambiguous, as it is not clear if it should be read to require a data broker to provide a list of *the types* of unique identifiers the entity uses (such as cookie IDs, IP addresses, mobile advertising IDs, etc.) or *the specific unique identifiers* the data broker associates with California consumers. In addition, disclosure of either formulation of such identifiers through the data broker registry would be virtually meaningless to consumers. Unique identifiers are often strings of alphanumeric characters that help to mask consumer identities within a data broker’s systems. Requiring publicization of such identifiers would not help to advance consumers’ understanding of data broker practices.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of responsible companies across the country that make up and support the digital economy. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than

¹ California SB 361 (2025-2026 Reg. Sess.), located [here](#).



2,500 companies that power the commercial Internet and the digital economy, which accounted for 18 percent of total U.S. gross domestic product (“GDP”) in 2024.² By one estimate, over 1.8 million jobs in California are related to the ad-subsidized Internet.³ Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on the non-exhaustive list of issues with the bill that we discuss in this letter.

* * *

We ask you to refrain from advancing SB 361 any further in the legislative process, or, at a minimum, refrain from adopting amendments that would require data brokers to disclose unique identifiers associated with consumers. Thank you for your consideration of this letter.

Sincerely,

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CC: Members of the Assembly Appropriations Committee

Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP

² John Deighton and Leora Kornfeld, *Measuring the Digital Economy*, INTERACTIVE ADVERTISING BUREAU, 8 (April, 2025), located at https://www.iab.com/wp-content/uploads/2025/04/Measuring-the-Digital-Economy_April_29.pdf.

³ *Id.* at 130-132.